

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 06/08/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MS21-0005

CASE NAME: FERNANDES VS. BROSTRAND

COURT TRIAL HEARING

FILED BY:

TENTATIVE RULING:

Parties to appear at 10:00 am for trial pursuant to Order entered May 20, 2026.

2. 9:00 AM CASE NUMBER: C22-01913

CASE NAME: D.B. VS. DOES 2 THROUGH 25

*HEARING ON MOTION IN RE: LEAVE TO FILE 3RD AMENDED COMPLAINT

FILED BY: D.B.

Before the Court is Plaintiff D.B.'s Motion for Leave to File Third Amended Complaint.

Factual and Procedural Background

This matter pertains to allegations of child abuse suffered by Plaintiff while in the foster care system in Contra Costa County. Plaintiff was placed in foster care with an approved, licensed, and trained foster family from approximately 1975 to 1979, when she was about twelve to fifteen years of age. While at that home, Plaintiff alleges she was regularly and repeatedly sexually abused and assaulted by her foster father.

Plaintiff reported the sexual abuse to her social worker, an employee of Defendant County. Despite the reports, the County failed to investigate the reports, failed to notify local law enforcement, and failed to remove her from the foster home. In other words, no corrective actions were taken. Plaintiff remained in the foster home and the sexual abuse continued.

Plaintiff filed her initial complaint on September 9, 2022. A First Amended Complaint was filed on December 16, 2022. In June 2023, the parties stipulated to the filing of a Second Amended Complaint, which was filed on September 5, 2023.

On July 28, 2025, the County filed a motion for judgment on the pleadings. After hearing argument on the motion, the Court issued an Order after Hearing ("Order") on January 6, 2026, sustaining the motion without leave to amend. The Order specifically indicated, however, that if Plaintiff believed "she should be given leave to amend to allege new cause(s) of action, [she] should file a motion for leave to amend so that the parties can properly and fully brief the issue."

Plaintiff filed the instant motion for leave to file her Third Amended Complaint ("TAC") on January 23, 2026. Defendant County opposes the motion. As of the date of the drafting of this tentative ruling, Plaintiff did not file a reply.

Legal Standard

Code of Civil Procedure section 473(a)(1) provides the Court discretion to permit a party to amend its pleadings. There is "a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations]..." (*Magpali v. Farmers Group* (1996) 48 Cal.App.4th 471, 487.) Leave to amend can be denied where there is "'inexcusable delay and probable prejudice to the opposing party'... [Citation.]" (*Ibid.*)

"[I]t is a rare case in which 'a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.'" (*Morgan v. Superior Court of Los Angeles County* (1959) 172 Cal.App.2d 527, 530 quoting *Guidery v. Green* (1892) 95 Cal. 630, 633.) "Generally, leave to amend